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Title 33 —Navigation and Navigable Waters

Chapter I —Coast Guard, Department of Homeland Security

Subchapter O —Pollution

Part 153 Control of Pollution by Oil and Hazardous Substances, Discharge Removal

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PART 153—CONTROL OF POLLUTION BY OIL AND HAZARDOUS SUBSTANCES, DISCHARGE REMOVAL

Authority: 14 U.S.C. 503; 33 U.S.C. 1321, 1903, 1908; 42 U.S.C. 9615; 46 U.S.C. 6101; E.O. 12580, 3 CFR, 1987 Comp., p. 193; E.O. 12777, 3 CFR, 1991 Comp., p. 351; Department of Homeland Security Delegation No. 00170.1, Revision No. 01.4.

Source: CGD 73-185, 41 FR 12630, Mar. 25, 1976, unless otherwise noted.

Subpart A—General

§ 153.101 Purpose.

The purpose of this part is to prescribe regulations concerning notification to the Coast Guard of the discharge of oil or hazardous substances as required by the Federal Water Pollution Control Act, as amended (FWPCA); the procedures for the removal of a discharge of oil; and the costs that may be imposed or reimbursed for the removal of a discharge of oil or hazardous substances under the FWPCA.

[CGD 84-067, 51 FR 17965, May 16, 1986]

§ 153.103 Definitions.

As used in this part:

- (a) **Act** means the Federal Water Pollution Control Act, as amended (33 U.S.C. 1251 *et seq.*).
- (b) **CERCLA** means the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9601 *et seq.*).
- (c) **Chemical agents** means those elements, compounds, or mixtures that coagulate, disperse, dissolve, emulsify, foam, neutralize, precipitate, reduce, solubilize, oxidize, concentrate, congeal, entrap, fix, make the pollutant mass more rigid or viscous, or otherwise facilitate the mitigation of deleterious effects or removal of the pollutant from the water. The term “chemical agents” as used in this part includes dispersants, surface collecting agents, biological additives, burning agents, and sinking agents as defined in Subpart H of the National Contingency Plan.
- (d) **Assistant Commandant for Marine Safety, Security and Environmental Protection** means the Coast Guard Officer designated by the Commandant to assist and advise the Commandant on matters related to marine environmental response, port and environmental safety, and waterways management.
- (e) **Coastal waters** means all U.S. waters subject to the tide, U.S. waters of the Great Lakes, specified ports and harbors on the inland rivers, waters of the contiguous zone, or other waters of the high seas subject to discharges in connection with activities under the Outer Continental Shelf Lands Act (43 U.S.C. 1331 *et seq.*) or the Deepwater Port Act of 1974 (33 U.S.C. 1501 *et seq.*), or which may affect natural resources belonging to, appertaining to, or under the exclusive management authority of the United States (including resources under the Magnuson Fishery Conservation and Management Act (16 U.S.C. 1801 *et seq.*)). These waters include those contained within the Exclusive Economic Zone declared by Presidential Proclamation 5030 on March 10, 1983 (43 FR 10605).

Note: Coastal waters are those waters where the Coast Guard has the responsibility for providing On-Scene Coordinators under the National Contingency Plan. Specific dividing lines between coastal and inland waters, and the identification of specified ports and harbors on inland rivers, are contained in Regional Contingency Plans prepared pursuant to the National Contingency Plan.

- (f) **Contiguous zone** means the entire zone established by the United States under Article 24 of the Convention on the Territorial Sea and the Contiguous Zone, as published in the June 1, 1972 issue of the FEDERAL REGISTER (37 FR 11906).
- (g) **Discharge** includes, but is not limited to, any spilling, leaking, pumping, pouring, emitting, emptying, or dumping, but excludes (A) discharges in compliance with a permit under Section 402 of the Act, (B) discharges resulting from circumstances identified and reviewed and made part of the public record with

respect to a permit issued or modified under Section 402 of the Act, and subject to a condition in such permit, and (C) continuous or anticipated intermittent discharges from a point source, identified in a permit or permit application under section 402 of the Act, which are caused by events occurring within the scope of relevant operating or treatment systems.

(h) **Hazardous substance** means any substance designated by the Administrator of the Environmental Protection Agency pursuant to section 311(b)(2) of the Act.

(i) **Inland waters** means all other waters of the U.S. not included in the definition of coastal waters.

Note: Inland waters are those waters where the Environmental Protection Agency has the responsibility for providing On-Scene Coordinators under the National Contingency Plan. Specific dividing lines between coastal and inland waters are contained in Regional Contingency Plans prepared pursuant to the National Contingency Plan.

(j) **Mechanical removal** means the use of pumps, skimmers, booms, earthmoving equipment, and other mechanical devices to contain the discharge of oil and to recover the discharge from the water or adjoining shorelines.

(k) **Navigable waters** means the waters of the United States as defined in paragraph 2.36(b) of this Chapter.

(l) **Offshore facility** means any facility of any kind located in, on, or under, any of the navigable waters of the United States, and any facility of any kind which is subject to the jurisdiction of the United States and is located in, on, or under any other waters, other than a vessel or a public vessel.

(m) **Oil** means oil of any kind or in any form, including but not limited to petroleum, fuel oil, sludge, oil refuse, and oil mixed with wastes other than dredged spoil.

(n) **On-Scene Coordinator or OSC** is the Federal official predesignated by the Environmental Protection Agency (EPA) or Coast Guard to coordinate and direct Federal removal efforts at the scene of an oil or hazardous substance discharge as prescribed in the National Oil and Hazardous Substances Pollution Contingency Plan (National Contingency Plan) as published in 40 CFR part 300.

(o) **Onshore facility** means any facility (including, but not limited to, motor vehicles and rolling stock) of any kind located in, on, or under, any land within the United States other than submerged land.

(p) **Person** includes an individual, firm, corporation, association, and a partnership.

(q) **Pollution Fund** and **Fund** means the revolving fund established in the Treasury under the authority in section 311(k) of the Act to carry out the provisions of section 311 (c), (d), (i), and (l) of the Act.

(r) **Public vessel** means a vessel owned or bare-boat chartered and operated by the United States, or by a State or political subdivision thereof, or by a foreign nation, except when such vessel is engaged in commerce.

(s) **Remove or Removal** refers to removal of oil or hazardous substances from the waters and shorelines or the taking of such other actions as may be necessary to minimize or mitigate damage to the public health or welfare, including, but not limited to, fish, shellfish, wildlife, and public and private property, shorelines, and beaches.

- (t) **Sorbent** means materials essentially inert and insoluble used to remove oil from water through a variety of sorption mechanisms. Examples include straw, expanded perlite, polyurethane foam, reclaimed paper fibers, and peat moss.
- (u) **Such quantities as may be harmful** means those quantities of oil and any hazardous substances determined in accordance with the provisions of section 311(b)(4) of the Act.

Note: Regulations that relate to such quantities as may be harmful of oil are published in 40 CFR part 110. Regulations that relate to such quantities as may be harmful (reportable quantities) of hazardous substances are published in 40 CFR part 117 and also listed in 40 CFR part 302.

- (v) **United States** means the States, the District of Columbia, the Commonwealth of Puerto Rico, Guam, American Samoa, the Virgin Islands, and the Trust Territory of the Pacific Islands.
- (w) **Vessel** means every description of watercraft or other artificial contrivance used, or capable of being used, as a means of transportation on water other than a public vessel.

[CGD 84-067, 51 FR 17965, May 16, 1986, as amended by CGD 88-052, 53 FR 25121, July 1, 1988; CGD 96-026, 61 FR 33665, June 28, 1996; CGD 97-023, 62 FR 33363, June 19, 1997; USCG-2002-12471, 67 FR 41333, June 18, 2002; USCG-2008-0179, 73 FR 35014, June 19, 2008]

§ 153.105 FWPCA delegations and redelegation.

The delegations and redelegations under the Federal Water Pollution Control Act (FWPCA) [33 U.S.C. 1321 et seq.] are published in § 1.01-80 and § 1.01-85, respectively, of this chapter.

[CGD 91-225, 59 FR 66485, Dec. 27, 1994]

§ 153.107 [Reserved]

§ 153.109 CERCLA delegations.

The delegations under the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (CERCLA) are published in § 1.01-70 of this chapter.

[CGD 83-009, 49 FR 575, Jan. 5, 1984]

Subpart B—Notice of the Discharge of Oil or a Hazardous Substance

§ 153.201 Purpose.

The purpose of this subpart is to prescribe the manner in which the notice required in section 311(b)(5) of the Act is to be given and to list the government officials to receive that notice.

§ 153.203 Procedure for the notice of discharge.

Any person in charge of a vessel or of an onshore or offshore facility shall, as soon as they have knowledge of any discharge of oil or a hazardous substance from such vessel or facility in violation of section 311(b)(3) of the Act, immediately notify the Commandant (CG-MER-3), Attn: Industry and Interagency Coordination Division, U.S. Coast Guard Stop 7516, 2703 Martin Luther King Jr. Avenue SE., Washington, DC 20593-7516, toll free telephone number:

800-424-8802, *direct telephone*: 202-267-2675, or *Fax*: 202-267-1322. If direct reporting to the NRC is not practicable, reports may be made to the Coast Guard or EPA predesignated OSC for the geographic area where the discharge occurs. All such reports shall be promptly relayed to the NRC. If it is not possible to notify the NRC or the predesignated OSC immediately, reports may be made immediately to the nearest Coast Guard unit, provided that the person in charge of the vessel or onshore or offshore facility notifies the NRC as soon as possible. A report made under this section satisfies the reporting requirements of § 151.15 of this chapter and of 46 CFR 4.05-1, if required under that provision.

Note: Geographical jurisdiction of Coast Guard and EPA OSC's are specified in the applicable Regional Contingency Plan. Regional Contingency Plans are available at Coast Guard District Offices and EPA Regional Offices as indicated in Table 2. Addresses and telephone numbers for these offices are listed in Table 1.

[CGD 84-067, 51 FR 17966, May 16, 1986, as amended by CGD 88-052, 53 FR 25121, July 1, 1988; USCG-2000-6927, 70 FR 74675, Dec. 16, 2005; USCG-2006-25150, 71 FR 39209, July 12, 2006; USCG-2008-0179, 73 FR 35014, June 19, 2008; USCG-2010-0351, 75 FR 36284, June 25, 2010; USCG-2014-0410, 79 FR 38435, July 7, 2014]

§ 153.205 Fines.

Section 311(b)(5) of the Act prescribes that any person who fails to notify the appropriate agency of the United States Government immediately of a discharge is, upon conviction, fined in accordance with Title 18, U.S. Code, or imprisoned for not more than 5 years, or both.

TABLE 1—ADDRESSES AND TELEPHONE NUMBERS OF COAST GUARD DISTRICT OFFICES AND EPA REGIONAL OFFICES

	Address	Telephone
EPA REGIONAL OFFICES		
Region:		
1	1 Congress St., Suite 1100, Boston, MA 02114-2023	617-918-1111
2	290 Broadway, New York, NY 10007-1866	212-637-3000
3	1650 Arch St., Philadelphia, PA 19103-2029	215-814-5000
4	Atlanta Federal Center, 61 Forsyth St., SW, Atlanta, GA 30303-3104	404-562-9900
5	77 West Jackson Boulevard, Chicago, IL 60604-3507	312-353-2000
6	Fountain Place 12th Floor, Suite 1200, 1445 Ross Avenue, Dallas, TX 75202-2733	214-665-2200
7	901 North 5th St., Kansas City, KS 66101	913-551-7003
8	999 18th St., Suite 500, Denver, CO 80202-2466	303-312-6312
9	75 Hawthorne St., San Francisco, CA 94105	415-744-1305
10	1200 Sixth Avenue, Seattle, WA 98101	206-553-1200

	Address	Telephone
COAST GUARD DISTRICT OFFICES		
District:		
USCG Northeast District	408 Atlantic Avenue, Boston, MA 02210-3350	617-223-8480
USCG East District	Federal Building, 431 Crawford St., Portsmouth, VA 23704-5004	757-398-6638
USCG Southeast District	909 S.E. First Avenue, Miami, FL 33131-3050	305-536-5651
USCG Heartland District	Hale Boggs Federal Bldg., 500 Camp Street, New Orleans, LA 70130-3396	504-589-6901
USCG Great Lakes District	1240 E. 9th St., Cleveland, OH 44199-2060	216-902-6045
USCG Southwest District	Coast Guard Island, Building 50-6, Alameda, CA 94501-5100	510-437-2940
USCG Northwest District	Jackson Federal Bldg., 915 Second Avenue, Seattle, WA 98174-1067	206-220-7090
USCG Oceania District	Prince PJKK Federal Bldg., Room 9212, 300 Ala Moana Blvd., Honolulu, HI 96850-4982	808-541-2114
USCG Arctic District	P.O. Box 25517, Juneau, AK 99802-5517	907-463-2199

TABLE 2—STANDARD ADMINISTRATIVE REGIONS OF STATES AND CORRESPONDING COAST GUARD DISTRICTS AND EPA REGIONS

States and EPA region	Coast Guard district
Region I:	
Maine	USCG Northeast District
New Hampshire	USCG Northeast District
Vermont:	
All except Northwestern portion	USCG Northeast District
Northwestern portion	USCG Northeast District
Massachusetts	USCG Northeast District
Connecticut	USCG Northeast District
Rhode Island	USCG Northeast District
Region II:	
New York:	
Coastal area and Eastern portion	USCG Northeast District
Great Lakes area and other portions	USCG Great Lakes District

States and EPA region	Coast Guard district
New Jersey:	
Upper portion	USCG Northeast District
Lower portion	USCG East District
Puerto Rico	USCG Southeast District
Virgin Islands	USCG Southeast District
Region III:	
Pennsylvania:	
Eastern portion	USCG East District
Great Lakes area	USCG Great Lakes District
Southwestern portion	USCG Heartland District
Maryland	USCG East District
Delaware	USCG East District
West Virginia	USCG Heartland District
Virginia	USCG East District
District of Columbia	USCG East District
Region IV:	
Kentucky	USCG Heartland District
Tennessee	USCG Heartland District
North Carolina	USCG East District
South Carolina	USCG Southeast District
Georgia	USCG Southeast District
Florida:	
Atlantic and Gulf coasts	USCG Southeast District
Panhandle area	USCG Heartland District
Alabama	USCG Heartland District
Mississippi	USCG Heartland District
Region V:	
Minnesota:	
Great Lakes area	USCG Great Lakes District
Inland rivers area	USCG Heartland District
Wisconsin:	
Great Lakes area	USCG Great Lakes District
Inland rivers area	USCG Heartland District
Michigan	USCG Great Lakes District
Illinois:	
Great Lakes area	USCG Great Lakes District
Inland rivers area	USCG Heartland District
Indiana:	
Great Lakes area	USCG Great Lakes District

States and EPA region	Coast Guard district
Inland rivers area	USCG Heartland District
Ohio:	
Great Lakes area	USCG Great Lakes District
Inland rivers area	USCG Heartland District
Region VI:	
New Mexico	USCG Heartland District
Texas	USCG Heartland District
Oklahoma	USCG Heartland District
Arkansas	USCG Heartland District
Louisiana	USCG Heartland District
Region VII:	
Nebraska	USCG Heartland District
Iowa	USCG Heartland District
Kansas	USCG Heartland District
Missouri	USCG Heartland District
Region VIII:	
Montana	USCG Northwest District
Wyoming	USCG Heartland District
Utah	USCG Southwest District
Colorado	USCG Heartland District
North Dakota	USCG Heartland District
South Dakota	USCG Heartland District
Region IX:	
California	USCG Southwest District
Nevada	USCG Southwest District
Arizona	USCG Southwest District
Hawaii	USCG Oceania District
Guam	USCG Oceania District
American Samoa	USCG Oceania District
Trust Territory of the Pacific Islands	USCG Oceania District
Northern Mariana Islands	USCG Oceania District
Region X:	
Washington	USCG Northwest District
Oregon	USCG Northwest District
Idaho	USCG Northwest District
Alaska	USCG Arctic District

[CGD 84-067, 51 FR 17967, May 16, 1986, as amended by CGD 88-052, 53 FR 25121, July 1, 1988; CGD 97-023, 62 FR 33364, June 19, 1997; USCG-1998-3799, 63 FR 35530, June 30, 1998; USCG-2000-7223, 65 FR 40057, June 29, 2000; USCG-2025-0716, 90 FR 47587, Oct. 2, 2025]

Subpart C—Notification of Arrival, Hazardous Conditions, and Certain Dangerous Cargoes

§ 153.301 Purpose.

The purpose of this subpart is to prescribe methods and procedures to be used to remove discharges of oil from coastal waters.

§ 153.303 Applicability.

The provisions of this subpart apply to any owner or operator of a vessel or onshore or offshore facility from which a discharge of oil into coastal waters occurs who acts to remove or arranges for the removal of such discharges.

§ 153.305 Methods and procedures for the removal of discharged oil.

Each person who removes or arranges for the removal of a discharge of oil from coastal waters shall:

(a) Use to the maximum extent possible mechanical methods and sorbents that:

- (1) Most effectively expedite removal of the discharged oil; and
- (2) Minimize secondary pollution from the removal operations;

Note: The Federal OSC is authorized by the provisions of the National Contingency Plan to require or deny the use of specific mechanical methods and sorbents. Sorbent selection considerations of the OSC include hydrographic and meteorological conditions, characteristics of the sorbent, and availability of a mechanical method for containment and recovery.

- (b) Control the source of discharge, prevent further discharges, and halt or slow the spread of the discharge by mechanical methods or sorbents or both to the maximum extent possible;
- (c) Recover the discharged oil from the water or adjoining shorelines by mechanical or manual methods or both to the maximum extent possible;
- (d) Use chemical agents only in accordance with the provisions of Subpart H of the National Contingency Plan and with the prior approval of the Federal OSC; and
- (e) Dispose of recovered oil and oil contaminated materials in accordance with applicable State and local government procedures.

[CGD 73-185, 41 FR 12630, Mar. 25, 1976, as amended by CGD 84-067, 51 FR 17966, May 16, 1986]

§ 153.307 Penalties.

Any person who fails or refuses to comply with the provisions of this part, or to comply with an order issued by the Federal On-Scene Coordinator under 33 U.S.C. § 1321(c) or (e)(1)(B), is liable for a civil penalty per day of violation or an amount equal to three times the costs incurred by the Oil Spill Liability Trust Fund as a result of such failure.

[USCG-1998-3799, 63 FR 35531, June 30, 1998]